

25STCV36803A 25STCV36803A

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-29

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Case Number: 25STCV36803A Hearing Date: July 29, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 29, 2026

CASE NUMBER

25STCV36803A

MOTION

Motion to Disqualify Counsel

MOVING PARTY

Plaintiff Jarett Cole

OPPOSING PARTIES

Defendants Gabriel Torres, Valeria Torres, and Alejandro
Torres

MOTION

Plaintiff Jarett

Cole ("Plaintiff") moves to disqualify defense counsel.

Plaintiff fails to

cite authority in the notice of motion under which the Court could grant the relief Plaintiff seeks. The Court cannot grant relief on grounds other than those set forth in the notice of motion. Consequently, the Court cannot grant Plaintiff's motion, as it is defective. (See Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75 Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].)

Accordingly,

the motion is denied.

Plaintiff is to give notice of the Court's ruling and to file proof of service of same.